

ORDINANCE NO. _____

ENTITLED: **“PURSUANT TO SECTION 2.2.1 ZONING MAP AMENDMENTS, SECTION 5.1.2 ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3 OFFICIAL ZONING MAP, OF THE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM COUNTY A-1 AGRICULTURAL AND RURAL RESIDENTIAL TO MR MEDIUM-DENSITY RESIDENTIAL FOR A PORTION OF LOT 1, BLOCK 1, CHEYENNE HILLS CHURCH SUBDIVISION AND PORTIONS OF THE EAST HALF OF SECTION 25, T.14N., R.66W., OF THE 6TH P.M., LARAMIE COUNTY, WYOMING (LOCATED NORTH OF AND INCLUDING PERSHING BOULEVARD, EAST OF FARTHING ROAD; ALSO LOCATED SOUTH OF SAGE ROAD, EAST OF GUNSMOKE ROAD).”**

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owners of the property described herein have applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on April 2, 2018, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as a portion of Lot 1, Block 1, Cheyenne Hills Church Subdivision and portions of the east half of Section 25, T.14N., R.66W., of the 6th P.M., Laramie County, Wyoming is hereby changed to MR Medium-density Residential and P Public.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval, publication, and the recording of the annexation encompassing the area described in Section 4 with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

MARIAN J. ORR, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____

CITY COUNCIL STAFF REPORT - SUMMATION

Saddle Ridge, 13th Filing Zone District Map Amendment

CASE NUMBER: UDC-18-00078
PREPARED BY: Susana Montana

SUBDIVISION CODE: CHCS 01 / UNP

MEETING DATES:	April 2, 2018 – Planning Commission	Public Meeting
	April 9, 2018 – City Council	1 st Reading
	April 17, 2018 – Public Services Committee	1 st Reading
	April 23, 2018 – City Council	2 nd Reading
	May 8, 2018 – Public Services Committee	2 nd Reading
	May 14, 2018 – City Council	3 rd Reading

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Master Application; Zone Change Map; List of Neighbors to be Notified; Draft Neighbor Notification Letter; - Submitted 2/23/2018 as the original project submission.
- Updated Zone Change Map; - Submitted 3/16 to add that the proposed zone for the LCSD #1 property is P Public.

STAFF RECOMMENDATION: On April 2, 2018, the Planning Commission, by a vote of 4 to 0, recommended approval of the zone change request from County A-1 Agricultural and Rural Residential to MR Medium-density Residential and P Public with no recommended conditions.

CITY COUNCIL STAFF REPORT

Saddle Ridge, 13th Filing **Zone District Map Amendment**

CASE NUMBER: UDC-18-00078
PREPARED BY: Susana Montana

SUBDIVISION CODE: CHCS 01 / UNP

OWNER WJE LLC
John Edwards
506 Shoshoni St.
Cheyenne, WY 82009

AGENT: John Edwards
506 Shoshoni St.
Cheyenne, WY 82009

PROJECT: Saddle Ridge, 13th Filing Zone Change.

DESCRIPTION: Zone change for 23.63 acres (annexation in progress) for residential development and school facility.

LOCATION:

1. Legal Description: A portion of Lot 1, Block 1, Cheyenne Hills Church Subdivision and portions of the east half of Section 25, T.14N., R.66W., of the 6th P.M., Laramie County, Wyoming.
2. Location: Located north of and including Pershing Boulevard, east of Farthing Road; also located south of Sage Road, east of Gunsmoke Road.
3. Address: Unaddressed.

PROPERTY SIZE: 23.63 acres.

CURRENT ZONING: County A-1 Agricultural and Rural Residential.

PROPOSED ZONING: City MR Medium-density Residential and P Public.

EXISTING USE: Vacant.

PROPOSED USE: Residential, school facility.

SURROUNDING LAND USES:

SURROUNDING	LAND USE(s)	ZONING	ANNEXATION STATUS
North	Residential/Agricultural	A-1	County
South	Residential	AR	County
East	Vacant	A-1	County
West	Residential	MR	City

EXECUTIVE SUMMARY:

This zone change application proposes changing the zoning classification of the subject property from County A-1 Agricultural and Rural Residential to City MR Medium Density Residential and City P Public for residential development and a school campus. The land is currently not within City limits, but the Applicant has submitted a petition to annex this land and has proposed a replat which includes this land. As the subject property does not currently have a City zoning designation, it must be rezoned in order to be developed. This proposal is generally consistent with the policies of PlanCheyenne and the future land use designation of the land.

Due to meeting the review criteria of Section 2.2.1.d of the Cheyenne Unified Development Code, on April 2, 2018, the Planning Commission, by a vote of 4 to 0, recommended approval of the zone change request from County A-1 Agricultural and Rural Residential to MR Medium-density Residential and P Public with no recommended conditions.

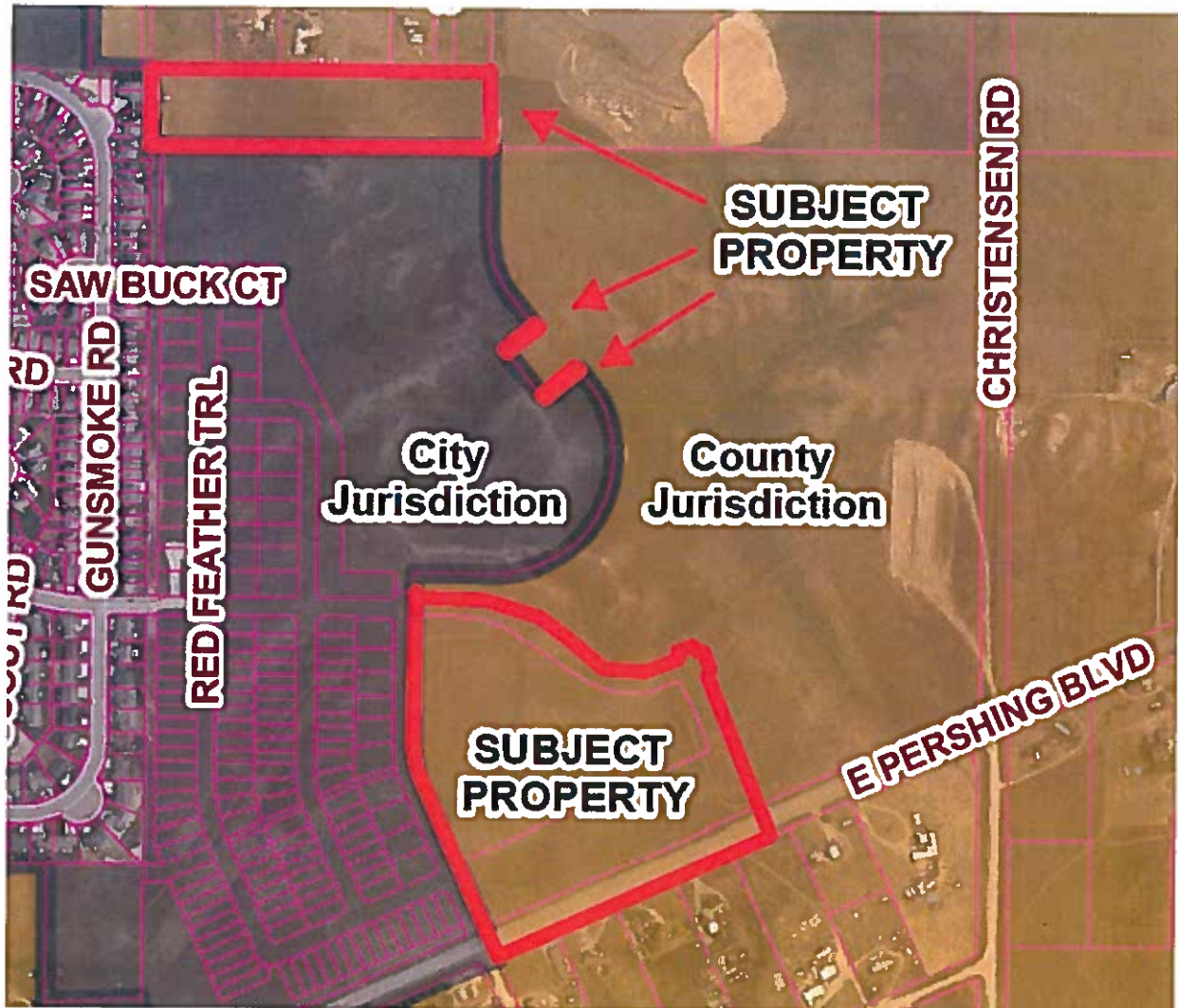
LOCATION/VICINITY MAP:



Map # 1 – Project Location/ Vicinity Map

Source: Cheyenne/Laramie County GIS Cooperative Program

AERIAL OF SUBJECT PROPERTY:



Map # 2 - Site aerial highlighting the subject property located north of and including Pershing Boulevard, east of Farthing Road; also located south of Sage Road, east of Gunsmoke Road.

Source: Cheyenne/Laramie County GIS Cooperative Program

VIEW OF SUBJECT PROPERTY:



Photograph # 1 –Image of the subject property from E. Pershing Boulevard, facing due north.

Source: Planning and Development Department Image



Photograph # 2 – Image of the subject property from Wilderness Trail ROW near Red Feather Trail facing due east (Saddle Ridge, 8th Filing shown in foreground, as closer views were unavailable due to construction).

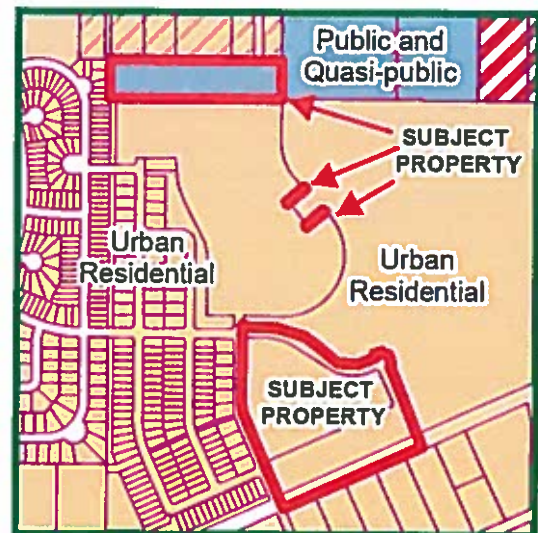
Source: Planning and Development Department Image

ZONE CHANGE DATA: *In reviewing, providing comments, and making recommendations and decisions on a proposed Zone Change Request, the Staff, Planning Commission and City Council shall use the following 8 criteria of UDC Section 2.2.1.d:*

1. PLANCHEYENNE - *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

PlanCheyenne is supportive of this zone change. The Urban Service Boundary, which is the area in which future urban growth is supported, is stated by Policy 1.2.A. This parcel is within the Urban Service Boundary.

On the future land use map found in PlanCheyenne, the subject land has been mostly designated as Urban Residential. The Urban Residential land use designation includes residential uses as a primary use and includes a wide variety of supporting and complementary uses as secondary uses. The Applicant is proposing to develop this property with residential uses, which are identified by PlanCheyenne as preferred future land uses. The Applicant is also seeking to place a school within the southern portion of the subject property.



Map #3 – Future Land Use
Source: Cheyenne/Laramie County GIS Cooperative Program

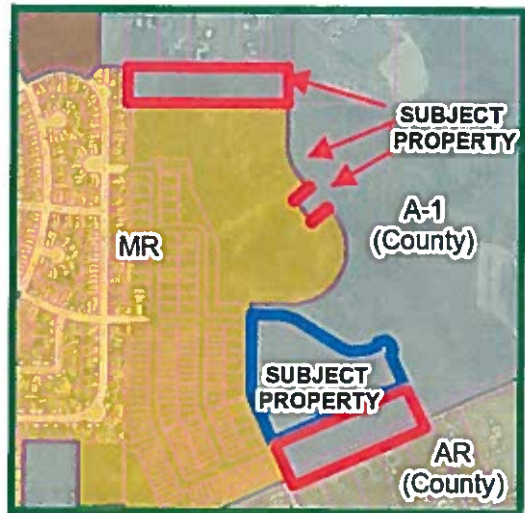
Schools are identified as a preferred secondary use of the Urban Residential designation and PlanCheyenne has several policies regarding coordination between the school district and the development community. The *Coordinated Planning* section also states that schools should be located within neighborhoods and in close proximity to sidewalks and greenways, goals which this application furthers.

A portion of the subject property to the north has a future land use designation of Public and Quasi-public. However, this designation was assigned due to previous ownership of the property by Cheyenne Hills Church. The property is now owned by the Applicant and is adjacent to other Urban Residential uses. The categories of the Future Land Use map do not wholly pre-determine zones or the uses within those zones.

2. SURROUNDING AREA - *The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.*

The application is compatible with the zoning of nearby property. The property is currently zoned County A-1 Agricultural and Rural Residential and, if annexed by the Governing Body by petition, would need a City zoning district to be developed. This application proposes rezoning the land outlined in red in Map #4 to MR Medium-density Residential and the land outlined in blue to P Public.

The City MR zoning district would most closely match the zoning of the developed residential area to the west and is compatible with PlanCheyenne. As the land outlined in blue is owned by Laramie County School District #1 and is expected to develop as a school in the future, P Public is appropriate.



Map #4 – Current Zone Districts
Source: Cheyenne/Laramie County GIS Cooperative Program

3. ZONING: BASIC STANDARDS & USES - *The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.*

This property is currently within the County A-1 Agricultural and Rural Residential zoning district. If the Governing Body approves the annexation of this property, it would need to be rezoned to a City zone before any development activity could commence.

4. DEVELOPMENT POTENTIAL - *The ability of the subject property and surrounding vicinity to be developed per the Subdivision Standards in Article 4 considering the proposed zoning.*

The property could be developed per the Subdivision Standards in Article 4. The residential portion of the subject property could develop within the standards of the MR zoning district. The school facility portion of the subject property could develop within the standards of the P district.

5. ZONING: INTENT, APPLICABILITY, & DESIGN OBJECTIVES - *The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.*

This application can support the intent and applicability statements of the MR Medium-density Residential district and P Public. The MR zoning district is subject to the Residential Design Standards of Section 6.6, which development on this area can meet after the property is replatted. The developer has proposed a replat which includes this land.

6. ZONING: FUTURE DEVELOPMENT - *The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.*

The subject property would be able to meet all the applicable standards if this application is approved. Development options would not be limited by this zone change in the event this specific proposal is not executed. If the specific proposal associated with this application is not executed, another developer could continue with a similar proposal or replat the property to suit their needs.

7. PUBLIC HEALTH, SAFETY, AND WELFARE – *Whether the application will harm the public health, safety, or general welfare.*

Wyoming State Section 15-1-103 (a) (xli) grants authority to municipalities to adopt ordinances which generally promote the public health, safety and general welfare of its citizens. This zone change would not harm the public health, safety, or welfare of the public.

8. REVIEW

Agencies with comments:

Planning: Eric Hammer

The map seems to indicate that the school district property would be rezoned to MR Medium Density Residential. Although the future land use map shows the area as Urban Residential, it is clear that a school will be constructed on that site in the future. A more appropriate zone would be P Public. **P&D STAFF: Provided as FYI, Applicant has addressed this.**

The title block doesn't do a great job of describing the property, considering some of the property has already been platted. **P&D STAFF: This document isn't being recorded and the map makes it easy to distinguish the areas the rezoning affects, so provided as FYI.**

Reviewing agencies without comments:

Development: Susana Montana

Engineering Department: Amy Allen

GIS/Engineering/Addressing: Gary Stogsdill

Mapping: Joe Fisher

Saddle Ridge, 13th Filing Zone Change

UDC-18-00078

Metro Planning Office (MPO): Nancy Olson

Reviewing agencies without response:

Engineering Department: Mark Escobedo

Parks and Recreation Admin: Teresa Moore

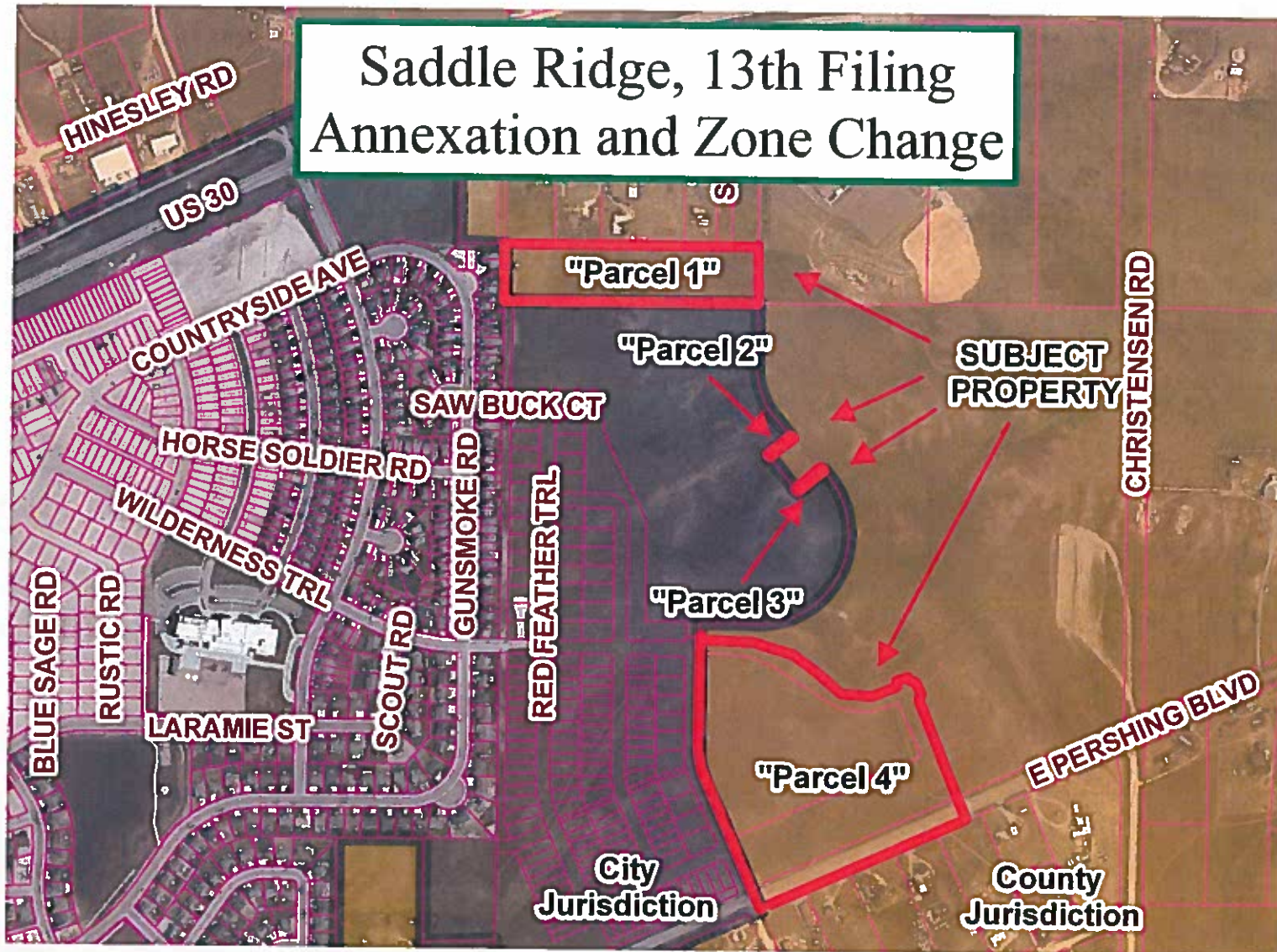
Other Comments:

None

Attachment: Zone Change Map

C: Owner, Agent/Applicant, File

Saddle Ridge, 13th Filing Annexation and Zone Change



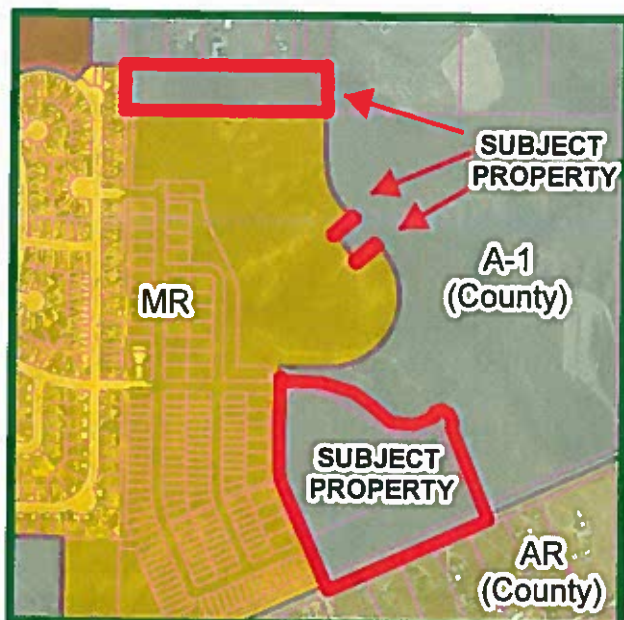
UDC-18-00074
Annexation
UDC-18-00078
Zone Change

Applicant: WJE LLC
307-634-8800

Scale applies to
above map only

0 660 1,320
Feet

Zone Districts



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS involves the sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use

